

FCCPC

FEDERAL COMPETITION AND CONSUMER PROTECTION COMMISSION

DIGITAL, ELECTRONIC, ONLINE, OR NON-TRADITIONAL CONSUMER LENDING GUIDELINES

2025

INTRODUCTION

The Federal Competition and Consumer Protection Commission (the "**Commission**") is responsible for the administration and enforcement of the Federal Competition and Consumer Protection Act 2018 (the "**Act**"). In carrying out its mandate, the Commission contributes to Nigeria's economic development by safeguarding consumer rights, promoting competitive markets, and enforcing the provisions of the Act and any subsidiary legislation made pursuant thereto.

In July 2025, the Commission introduced the Digital, Electronic, Online, or Non-traditional Consumer Lending Regulations 2025 (the "**Regulations**"), establishing a regulatory framework for the provision of digital and electronic consumer lending services in Nigeria.

Following the introduction of the Regulations, the Commission has determined the need to outline its general approach to the administration and operation of the Regulations. Consistent with its statutory mandate under Sections 17(a), (g), (m), (s), (t), (x), (y) and 18 of the Act, and in furtherance of its objective of protecting consumers and ensuring competitive and efficient markets, the Commission has issued these Digital, Electronic, Online, or Non-traditional Consumer Lending Guidelines 2025 (the "**Guidelines**"). The Guidelines are intended to contextualize, clarify, and supplement the provisions of the Regulations.

Accordingly, in exercise of the powers conferred upon the Commission under Regulation 28 of the Regulations and Sections 17, 18, and 163 of the Act, and all other powers enabling it in that behalf, the Commission hereby makes these Guidelines.

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Part 1 – Purpose and Scope

Purpose and Scope

1. Except as may be indicated otherwise, the Guidelines apply to all persons, entities, or institutions engaged in the provision, facilitation, or administration of digital, electronic, online, or other non-traditional consumer lending services within the Federal Republic of Nigeria, whether directly or through digital platforms, agents, or other intermediaries. In addition, the provision of Section 2 of the Act is herein incorporated into the provisions of these Guidelines, and these Guidelines shall be applicable and binding on persons and activities included therein. For the avoidance of doubt, these Guidelines and the Regulations extend to cross-border digital consumer lending services offered to consumers in Nigeria.

2. Notwithstanding paragraph 1 of these Guidelines, the provisions herein shall not apply to:

   (a) Financial Institutions duly licensed and regulated by the Central Bank of Nigeria; and
   (b) lending arrangements between employers and employees undertaken strictly pursuant to a contract of employment, staff handbook, or other ancillary employment policies; and
   (c) duly registered and licensed cooperative societies operating in accordance with applicable laws;

3. For the avoidance of doubt, any entity, undertaking or arrangement that falls outside the foregoing exclusions in paragraph 2 of these Guidelines shall be subject to the compliance provisions contained in the Regulations and these Guidelines.

Regulatory Oversight of Digital Lending Services

4. Digital lending services and ancillary support services shall only be rendered to the extent permitted under the Act, the Regulations, and these Guidelines. These Guidelines recognize the growth of the digital lending services sector, and in the best interest of consumers require participating undertakings to be transparent, accountable, fair, and competitive in their service offerings.

5. The Commission shall seek to effectively communicate with every undertaking seeking registration or that is registered in line with the Regulations and these Guidelines. Such communication shall be on matters relating to the Commission's regulatory oversight on digital lending services, including requests for clarification, the application process, and consumer complaints.

Part 2 – Transitional Provisions

Waiver for Transitions

6. In furtherance of an effective transition to the regulatory regime under the Regulations and these Guidelines, the Commission may, upon the consideration and approval of the Executive Vice Chairman of the Commission, waive any requirement under the Regulations or Guidelines, provided that such waiver shall:

   (a) be based on a request made by the person or undertaking otherwise obliged to fulfill the requirement;
   (b) not defeat the purpose of the Act, Regulations, or Guidelines; and
   (c) be in force for a period not exceeding three (3) months, without any room for further extension.

Digital Lending Guidelines, 2022

7. The scope of application of the Regulations, which covers Consumer Lending Services, includes digital lending as contemplated in the Digital Lending Guidelines, 2022, To prevent a dichotomy of regulations and guidelines on the operationalization of consumer lending services, the provisions of the Digital Lending Guidelines, 2022 is hereby repealed, and the same shall have no legal effect.

8. Notwithstanding the provision of paragraph 6 of these Guidelines, and subject to paragraph 9 and 13 of these Guidelines, the cancellation and repeal of the Digital Lending Guidelines 2022 shall not:

   (a) revive anything not in force or existing at the time when the repeal takes effect;
   (b) affect the previous operation of the Digital Lending Guidelines, 2022 or anything duly done or suffered under it;
   (c) affect any right, privilege, obligation or liability accrued or incurred under the Digital Lending Guidelines, 2022;
   (d) affect any penalty, forfeiture or punishment incurred in respect of any offence committed under the Digital Lending Guidelines, 2022;
   (e) affect any ongoing, future or subsisting investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment and any such investigation, legal proceeding or remedy already instituted or may be instituted, continued or enforced, and any such penalty, forfeiture or punishment as may be imposed, as if the Digital Lending Guidelines, 2022 had not been repealed.

Deemed Licence Holders

9. Any undertaking which had, prior to the commencement of the Regulations, registered with the Commission for the provision of digital lending services under the Digital Lending Guidelines, 2022 shall be considered a Deemed Licensee having a deemed licence to provide Consumer Lending Services, for the period specifically provided in paragraph 11 of these Guidelines.

10. A Deemed Licensee shall not be required to immediately obtain the approval of the Commission for the provision of Consumer Lending Services under the Regulations, provided that the Deemed Licensee furnishes the Commission with such information and operational details, without limitation:

    (a) schedule of loan books and transactions;
    (b) financial statement for the preceding financial year;
    (c) details of Lending Applications deployed or utilised by the Deemed Licensee for the provision of digital lending services;
    (d) evidence of compliance with annual returns filing in line with the CAMA and other sector-specific laws and regulations; and
    (e) any other information as the Commission may require.

11. Notwithstanding paragraph 9 of these Guidelines, a deemed licensee shall expire on *30 June 2026*. A Deemed Licensee that intends to continue providing Consumer Lending Services under the Regulations after such expiration shall, at least 60 days before the expiration date, apply to the Commission for approval to provide Consumer Lending Services in accordance with the Regulations.

12. Notwithstanding the provisions of paragraph 9 of these Guidelines, where the Commission is satisfied that the details, composition, beneficial ownership or other characteristics of a Deemed Licensee (including but not limited to the object and business of the Deemed Licensee) has substantially changed from the date of registration of the Deemed Licensee under the Digital Lending Guideline, 2022, the Commission shall direct the Deemed Licensee to procure the approval of the Commission in accordance with the Regulations.

13. The provisions of paragraphs 8, 9 and 10 shall only apply to digital lenders registered with the Commission under the Digital Lending Guidelines, 2022.

Existing Partnerships and Existing Loans

14. The Regulations prohibit any partnership among undertakings in a Regulated Industry and non-regulated undertakings for the provision of Consumer Lending Services, as contemplated under paragraph 11 of the Regulations, unless such partnership is subject

to a mutual consumer lending or service level agreement forming part of an application submitted to the Commission for approval.

15. Notwithstanding Regulation 11 of the Regulations, all undertakings engaged in partnerships as contemplated therein shall forthwith apply to the Commission for the regularisation and approval of such partnerships in accordance with the Regulations, and in any event no later than 31 December 2025.

16. Further to the provision of paragraph 12 of these Guidelines and Regulation 11 of the Regulations, the following shall apply:

    (a) Where partnerships carrying on Consumer Lending Services with existing loan cycles booked prior to the commencement of the Regulations would be directly affected by the termination of existing partnerships, such businesses shall prepare a complete register of subsisting loans, including relevant dates, until the natural conclusion of the loan cycle; and

    (b) Such undertakings shall submit the register of subsisting loans to the Commission no later than *January 5, 2026*. Upon receipt of the register, the Commission may, at its discretion, extend the validity of such existing partnerships. The Commission may further waive the termination requirement and any resulting consequences, with respect to specifically disclosed, submitted, and duly considered transactions.

17. Where a partnership contemplated under Regulations 8 and 11 is disrupted due to the encumbrance or termination of an enabling licence of a partner undertaking, as contemplated under Regulation 9 of the Regulations, the affected undertaking shall, within five (5) business days, submit to the Commission the details of any subsisting and unexpired loan cycles. The Commission may, at its discretion, consider such transactions for exemption from the termination requirement under paragraph 9 of the Regulations, allowing them to run until the contractual expiry of the relevant loan cycle.

18. Notwithstanding the termination of any relationship, arrangement, licence, approval, or authorisation contemplated in Regulations 9 and 11, all rights, obligations, liabilities, or proceedings that accrued, arose, or were incurred before such termination shall continue to subsist and be enforceable as if such termination had not occurred, unless otherwise expressly provided by the Act, the Regulations or these Guidelines.

Lending Applications and Approval Fee

19. In line with paragraph 15 of the Regulations, all Lending Applications to be used for the provision of Consumer Lending Services shall be disclosed to the Commission during

the application process. In addition, the following, without limitation, shall be provided to the Commission:

(a) evidence of compliance with the relevant standards for mobile applications, data messaging, information security, data quality and secure authentication, as determined by the International Organisation for Standardisation (ISO);
(b) evidence of ownership of intellectual property rights in the Lending Application or a valid and subsisting licence to use the same;
(c) evidence of compliance of the Lending Applications with the Data Protection Legislations and other applicable laws as may be required by the Commission; and
(d) such other information or documentation as may be required by the Commission.

20. An applicant, whether in a joint venture or otherwise, shall be allowed a maximum of five (5) Lending Applications for the provision of Consumer Lending Services. For the avoidance of doubt, where the applicants are in a joint venture for the provision of Consumer Lending Services, the aggregate number of Lending Applications to be used or controlled by the joint venture shall not exceed five (5), and in any case, each member of the joint venture shall not, nor shall it be permitted, to independently register, use, operate or control consumer lending apps or software for the provision of Consumer Lending Services unless and until the termination of the joint venture.

21. As part of any application for the Commission's approval (whether in respect of a joint venture or a sole enterprise), the approval fee payable under Regulation 15(2)(a) and (b) of the Regulations shall entitle an applicant to register up to two (2) Lending Applications. Where an applicant seeks to register additional Lending Applications such that the total number exceeds two (2) but does not exceed five (5), the applicant shall pay an additional fee of NGN500,000 (Five Hundred Thousand Naira) per application.

22. In the event of renewal of licence to undertake Consumer Lending Services as in paragraph 16(3) of the Regulations, the applicant shall submit details of the Lending Applications utilised or employed in the provision of Consumer Lending Services.

23. Where an applicant fails to declare or disclose any Lending Application used or intended to be used in the provision of Consumer Lending Services, the Commission may refuse to grant approval. Where approval has already been granted prior to the Commission's discovery of an undeclared or undisclosed Lending Application, the Commission may, without prejudice to any other sanction, revoke such approval or impose an administrative penalty in accordance with the Regulations or the Act. The Commission may further direct any mobile application marketplace or digital distribution platform to immediately delist any Lending Application operated in breach of the Regulations or these Guidelines.

Pilot Programmes

24. Where a business or an undertaking proposes to provide Consumer Lending Services under a Pilot Programme, such undertaking shall apply to the Commission for the Commission's "no-objection", provided that such business or undertaking complies with the requirements under paragraphs 25 and 26 of these Guidelines.

25. To operate a Pilot Programme, an applicant shall satisfy that:

(a) the business for the provision of Consumer Lending Services shall not exceed or involve: (i) a total exposure of N1,000,000 (One Million Naira) in aggregate; and (ii) more than one hundred (100) unique customers;

(b) the consumer lending services are innovative with clear potential to:

(i) improve accessibility, customer choices, efficiency, security and quality in the provision of Consumer Lending Services; or
(ii) address gaps in, or open up new consumer lending opportunities and services;

(c) The applicant has the necessary resources to support the Pilot Programme. This includes the required resources and expertise to mitigate and control potential risks and losses arising from the offering of the product, service or solution; and

(d) The applicant shall have a business plan to show that the product, service or solution can be successfully deployed after exit from the Pilot Programme.

26. To apply for a Pilot Programme, an applicant shall submit to the Commission, the following documents:

(a) Board resolution approving the application and participation in the Pilot Programme;
(b) Certificate of Incorporation;
(c) Company profile and functional contact: e-mails, telephone numbers, office and postal addresses;
(d) Memorandum of Association and Articles of Association;
(e) Shareholding structure as evidenced in its latest Status Report obtained from the CAC;
(f) Status report obtained from the CAC;
(g) Curriculum Vitae of each of its directors and management staff;
(h) Organogram;
(i) Feasibility plan, proof of concept, and a detailed business plan;
(j) Key outcomes that the testing is intended to achieve;

(k) Document that shall outline the strategy of its Pilot Programme, including current and potential engagements, geographical spread, and benefits to be derived;
(l) Anti-money laundering/counter terrorism financing policy;
(m) Evidence of patent certificates or registration of patent rights, if any; and
(n) Any other information that the Commission may require.

27. A participant in the Pilot Programme shall provide the Commission with monthly updates on its operations, including but not limited to details of its consumer lending activities, risk management practices, compliance measures, and any material issues encountered. Such reports shall be submitted within fifteen (15) days of the end of each reporting month, or within such other period as the Commission may direct. The Commission may, at its discretion, require the participant to furnish additional information, clarifications, or interim updates as it deems necessary.

28. The Commission reserves the right to:

(a) provide further support by relaxing specific compliance requirements in the Regulation or these Guidelines within the period of the Pilot Programme. Upon completion and on exiting the Pilot Programme, the successful entity is expected to meet relevant legal and regulatory requirements;
(b) issue directives to applicants or participants in the Pilot Programme; and
(c) monitor activities and compliance of undertakings participating in Pilot Programmes.

29. The Pilot Programme shall be for a period of ninety (90) days, renewable only for a single additional term of ninety (90) days by the Commission, upon receipt of a request for such renewal.

30. Where any participant contravenes a provision of the Act, the Regulations or these Guidelines, the Commission may, where it considers the contravention incapable of remedy, terminate that participant's participation in the Pilot Programme.

31. A participant under the Pilot Programme that intends to become fully licensed in line with the Regulations shall in no less than a fourteen (14) days prior to the expiration of its term under the Pilot Programme Transition make a written application to this Commission and the Commission may, having regard to the performance of the participant under the Pilot Programme, grant such application and issue the licence with or without recourse to the requirements for licensing under the Regulations.

Financial Institution Providing Certain Consumer Lending Services

32. A Financial Institution may provide Consumer Lending Services in accordance with the terms and conditions of issue of its relevant licence and governing laws. The Regulations and these Guidelines shall not preclude a Financial Institution from providing Consumer Lending Services, provided that a Financial Institution shall not participate in or engage in any Consumer Lending Services unless such services are within its permissible activities.

33. Notwithstanding paragraphs 2 and 32 of these Guidelines, any Financial Institution that intends to engage in or provide Consumer Lending Services other than the lending of money to natural persons or corporations in accordance with BOFIA and applicable CBN regulations shall submit to the Commission a notification letter describing the proposed Consumer Lending Service, its scope, partnership (if any) and the relevant licence under which it operates. The Commission may, at its discretion, require additional information and, where it deems fit, grant approval for the Financial Institution to provide such Consumer Lending Service.

Relationship with Other Laws

34. Notwithstanding anything contained in these Guidelines, the Guidelines are in addition to, and not a substitute for, compliance requirements under other laws, including the Act, the Regulations, these Guidelines, other regulations or guidelines made by the Commission, or relevant subsidiary legislations made by other applicable regulators (to the extent that such subsidiary regulations are not inconsistent with the provisions of the Regulations and the Guidelines on matters of consumer protection and competition).

35. These Guidelines herein made pursuant to the Act do not preclude compliance with any provisions of the Act, and compliance with these Guidelines shall not be an acceptable defence for failure to comply with any provisions of the Act, the Regulations, or any other law in force.

36. Where an undertaking conducts its business in breach of the provisions of the Act, the Regulations or these Guidelines, and such conduct is hitherto approved or permitted by another regulator or pursuant to other extant laws other than the Act, the Commission reserves the right and power to, subject to any inter-agency agreement, issue a Cease and Desist Order to the erring undertaking concerned from further violations of the provisions of the Act, the Regulations or these Guidelines.

Disclosure of Commercially Sensitive Information

37. Where the Regulations require the submission of any document or information to the Commission, and such document or information contains commercially sensitive material, the submitting person or business shall clearly indicate the same. The

Commission shall treat such document or information as commercially sensitive in accordance with Section 35 of the Act.

Approval of Contractual Changes

38. Regulation 12(4) of the Regulations requires that all modifications, amendments, assignments, subcontract or novation of any Consumer Lending Services Agreement shall be subject to the prior approval of the Commission. The amendments therein contemplated shall be limited to material amendments relating to matters itemed in Regulations 13(1) (a-l) of the Regulations, which include:

(a) Identity/name of parties and their address;
(b) obligations of each of the lending partners;
(c) nature of the Consumer Lending Services;
(d) rights of consumers/borrowers against the respective parties to the Agreement;
(e) interest rates;
(f) default rates or any other fees, including but not limited to interest rates or Annual Percentage Rates (APR), charges, fees and levies for default;
(g) allocation of risk among collaborators or partners;
(h) requirement for insurance or indemnity of the lenders' liability;
(i) default recovery/enforcement methods or modalities;
(j) data protection compliance;
(k) solvency;
(l) liquidation;
(m) competition law and consumer protection provisions;
(n) applicable fees and charges; and
(o) dispute resolution.

39. Except as expressly provided in paragraph 38 of these Guidelines, amendments relating to less significant matters shall only be self-reported in periodic compliance filings in line with Regulation 25 of the Regulations.

40. Notwithstanding paragraph 38 of these Guidelines, the Commission, however, reserves the right to require further clarification on any actual or proposed change to a Consumer Lending Services Agreement and may issue directions to the applicable parties as it deems fit.

Duplicate Regulatory Requirements

41. Where, under the Regulations, the trust mark or authorisation of more than one other regulator, including the CBN, NCC or NDPC, is required as evidence of compliance or as a condition for similar or the same conduct or process, the trust mark or authorisation of any one of the relevant regulators shall constitute presumptive evidence of compliance.

Provided, however, that the Commission reserves the right to require additional information or documentation and, where appropriate, to rebut such presumption and make an independent determination of compliance.

Complaint Framework and Resolution

42. Every undertaking licensed to provide Consumer Lending Services shall maintain a complaints-handling framework, including a dedicated complaints channel, to ensure accessibility and accountability in dealing with consumer complaints.

43. Where an aggrieved consumer has a complaint regarding services regulated under the Regulations and these Guidelines, the consumer shall first lodge the complaint with the business providing the service. The business shall take all reasonable steps to resolve the same within forty-eight (48) hours of receipt.

44. Where a complaint cannot reasonably be resolved within forty-eight (48) hours due to the complexity of the factual issues in dispute, the business shall notify the consumer in writing, identify the nature of the issues requiring extended resolution, and ensure that the complaint is fully resolved within fourteen (14) days of receipt.

45. Upon expiration of the fourteen (14) days in paragraph 43 of these Guidelines, the consumer may escalate the complaint to the Commission by submitting details of the complaint, together with the business's responses and supporting documentation on the Commission's designated consumer lending complaint portal accessible at lenderstaskforce@fccpc.gov.ng. The Commission may require the consumer or the business to furnish any additional information it deems necessary.

46. The Commission shall review the complaint and may issue directives, impose sanctions, or take such other enforcement action against the undertaking as it considers appropriate under the Act or the Regulations.

47. Each undertaking providing Consumer Lending Services shall:

    (a) Submit, in the form and manner as required by the Commission, quarterly reports on consumer complaints, indicating the volume, nature, and resolution status of such complaints;

    (b) maintain proper records of all complaints received, actions taken, and timelines for resolution, and shall make such records available to the Commission upon request.

Part 3 – General Provisions

Application Forms

48. As required under paragraph 12 of the Regulations, the applicants shall submit completed forms as part of its application to the Commission. The application forms referred to in the Regulations have herein been amended and included as Annexure 1, Annexure 2 and Annexure 3 to these Guidelines.

Effective Date

49. These Guidelines shall take effect on **Tuesday, November 18, 2025.**

Penalties

50. Any person or undertaking that contravenes these Guidelines shall be subject to penalties in line with paragraph 27 of the Regulations.

Definitions

51. In these Guidelines –

"***CAC***" means the Corporate Affairs Commission, as established under the CAMA.

"***CAMA***" means the Companies and Allied Matters Act No.3 of 2020 (as amended).

"***CBN***" means the Central Bank of Nigeria, established under the Central Bank of Nigeria Act No.7 of 2007.

"***BFA***" means Business Facilitation (Miscellaneous Provisions) Act, 2022 (Act No. 5 of 2022).

"***BOFIA***" means the Banks and Other Financial Institutions Act Cap B3, Laws of the Federation of Nigeria 2004.

"***Data Protection Legislations***" means the Nigeria Data Protection Act, 2023, the General Application and Implementation Directive, 2025 and any other applicable laws in Nigeria relating to data protection, the processing of personal data, data privacy or the recording, monitoring or interception of communications.

"***Deemed Licensee***" means every undertaking that is eligible to obtain a licence under the Regulations but which, prior to the commencement date of the Regulations, had been registered with the Commission under the Guidelines for Digital Lending, 2022.

"***Digital Lending Guidelines, 2022***" means the Limited Interim Regulatory/Registration Framework and Guidelines for Digital Lending, 2022.

"***Executive Vice Chairman***" means the Executive Vice Chairman of the Commission appointed in line with the Act.

"***Financial Institution****"* means a bank or such other financial institution as defined under the BOFIA and duly licensed in accordance with applicable law to provide financial services.

"***Lending Applications***" means mobile applications, web applications and such other digital platforms to be used or controlled by an applicant or service provider in the provision of Consumer Lending Services.

*"**NCC**" means the Nigerian Communications Commission.*

*"**NDPC**"* means the Nigeria Data Protection Commission established under the Nigeria Data Protection Act, 2023.

"***Pilot Programme"*** means a limited, trial implementation of the Consumer Lending Services for the purpose of evaluating performance, functionality, and feasibility in a controlled environment, prior to any full-scale or commercial deployment or implementation, and which shall not be for a period exceeding ninety (90) days from the date of no-objection of the Commission.

"***Standard Organisation of Nigeria"*** means the Standard Organisation of Nigeria, established under the Standard Organisation of Nigeria, 2015.

Annexure 1

Form 001 (as Amended)

FCCPC Digital Lending Service Provider and Vendor Form

***NB**: This form should be submitted, duly completed, accompanied by the complete set of documents required under the First Schedule.*

1. Name of service provider:

_____

2. Operational business address:

_____

3. Functional phone numbers:

_____ _____

4. Email address:

_____

_____

5. Website:

_____

6. Identity and nationality of promoters, directors and initial key role players:

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

7. Type of services provided:

_____ _____

_____ _____

_____ _____

_____ _____

8. Details of affiliations with any other companies, institutions or similar businesses, whether domestic, regional or global:

_____

_____

_____

9. Consultants, agents, or any person assisting with the registration process, operations, or management:

_____

_____

10. Full details of all operational Bank Account(s) (Bank, Account Name and Account Number):

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

11. Proposed commercial and revenue model (including interest rates or Annual Percentage Rates (APR), charges, fees and levies for default):

_____

_____

12. Source(s) of funding, including equity, debt or otherwise:

_____

_____

13. Any licence authorizing the business to operate:

_____

_____

14. List of all services or applications in operation or intended for operation:

_____ _____

_____ _____

_____

15. Specify the services and processes to be provided by the Company for lenders:

_____

_____

_____

_____

16. Confirm that the services and apps deployed for lenders are not designed to and will not have access to customers' call logs, contacts and photos/gallery:

_____

_____

_____

17. Confirm that the platforms, file formats, and web links to be provided for lenders are the same as those stated in Clause 14 above:

_____

_____

_____

SCHEDULE OF DOCUMENTS REQUIRED FOR REGISTRATION

S/N	Document	Confirmation
1	Duly filled Digital Lending Service Provider and Vendor Guidelines Form 001 (as Amended), Form 002 and Form 003	
2	Evidence of payment of applicable fees	
3	Certified copy of the Certificate of Incorporation of the Applicant, CAC Status Report and MEMART	
4	Detailed list and profile of members of the Board of Directors and key management personnel of the	

	applicant(s);	
5	List of the shareholders of the applicant[s], including detailed information of the ultimate beneficiaries or beneficial owners of any interests in the applicant(s);	
6	Evidence of the proposed Lender's financial capacity to finance the Services	
7	Company's Terms of Use	
8	Company's Privacy Policy	
9	Company's Code of Conduct	
10	Audit Trust mark from the Nigerian Data Protection Commission	
11	Compliance Audit Report and Privacy Impact Assessment Report from a duly registered Data Protection Compliance Organization	
12	A brief description of the business and, where relevant, its groups, subsidiaries and affiliates	
13	An organogram showing the role players and the location of key role players, and any operational approving authorities	
14	Details of a person within the business who is authorized to accept all correspondence and service on the business's behalf	
15	Evidence of membership in any trade or professional associations	
16	Sample of Service Level Agreements/ Consumer	

	Lending Services Agreement with any digital lender	
17	Evidence of feedback and complaint resolution mechanism	
18	Evidence of tax payments or tax waivers, where applicable	
19	Copy of the licence duly issued by the Sector Regulator (where applicable);	

Annexure 2

Form 002

Declaration For Digital, Electronic, Online or Non-Traditional Consumer Lending Businesses in Nigeria

I/We, the undersigned, being director(s) or legally binding and appointed representative(s) of the Applicant declare that:

My/Our business is legitimate, lawful and will operate in continuing compliance with any prevailing and applicable laws.

I/We have complied with all applicable regulatory requirements and or approvals for any technology to be deployed in or used for the purpose of our business in Nigeria.

The capital to be invested in my/our business has no origin or flow that is in violation of any law or proceeds of any illegal activity.

I/We have complied with; and will continue to comply with all provisions of law with respect to third-party privacy rights and personal data including data related to principles of lending as well as recovery practices that are consistent with fair lending principles and provided for under Sections 17(g), (y); 114; 124; 125; 127; and 129 of the Federal Competition and Consumer Protection Act, 2018; Nigeria Data Protection Act, 2023 and the Nigeria Data Protection Regulations, 2019.

Our processes and operations comply with the Central Bank of Nigeria Guidelines on Anti-Money Laundering and Combating the Financing of Terrorism (AML/CFT).

The information provided in this Declaration is true.

To the best of my/our knowledge and belief, the information in FORM DLG 001 and this Declaration is complete and accurate.

Director (Name): _____

Signature: _____ **Date:** _____

Director (Name): _____

Signature: _____ **Date:** _____

Annexure 3

Form 003

FCCPC Registration of Partnerships Form

***NB**: This form should be submitted, duly completed, accompanied by the complete set of documents required with respect to the Consumer Lending Services Agreement.*

1. Name of parties to the agreement:

   _____ _____

2. Business addresses of each party:

   _____ _____

   _____ _____

   _____ _____

3. Type of relationship (JV, partnership, platform integration, revenue share):

   _____

4. Scope of services covered under the agreement:

   _____

   _____

   _____

5. Duration and renewal terms:

_____

_____

6. Revenue and fee-sharing arrangement:

_____

_____

7. Roles and responsibilities of each party:

_____

_____

_____

_____

8. Consumer protection obligations (who handles disclosure, complaints, data):

_____

_____

_____

9. Allocation of risk/liability:

_____

_____

_____

_____

10. Termination triggers:

_____

_____

_____

_____

11. Dispute resolution mechanism:

_____

_____

_____

SCHEDULE OF DOCUMENTS REQUIRED FOR REGISTRATION

S/N	Document	Confirmation
1	Certified copy of the signed partnership agreement (full contract)	
2	Board resolution or internal approval from each party authorising the partnership	
3	Evidence of a valid FCCPC/sector license or approval for each party (where applicable)	
4	Privacy policy and data-sharing framework relevant to the partnership	
5	Evidence of complaint-handling mechanism (summary document or policy extract)	
6	Signed Consumer Lending Services agreement (where applicable)	